



CHAPTER 44.

An Act to provide that motor vehicles used under certain conditions are not to be deemed to be stage or express carriages or vehicles carrying passengers for hire or reward at separate fares, and to amend section three of the Road and Rail Traffic Act, 1933. A.D. 1937.
[6th July 1937.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) At the end of subsection (1) of section sixty-one of the Road Traffic Act, 1930 (which, as amended by section twenty-four of the Road Traffic Act, 1934, defines “stage carriages” and “express carriages” by reference, amongst other matters, to their being motor vehicles carrying passengers for hire or reward at separate fares, subject to a proviso relating to the use of certain vehicles on occasions of race meetings, public gatherings and other like special occasions), the following further proviso shall be inserted :—

“Provided also that a motor vehicle adapted to carry less than eight passengers shall not be deemed to be a stage carriage or an express carriage by reason only that it is used to carry passengers at separate fares on a journey in relation to which the following conditions are satisfied (that is to say) :—

(a) the number of passengers carried must not exceed four;

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20 & 21 Geo. 5. c. 43.
24 & 25 Geo. 5. c. 50.

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- (b) the making of the agreement under which any of the passengers pays his separate fare must not have been initiated by the driver or by the owner of the vehicle, by the person who has let the vehicle for hire by any hiring agreement or hire purchase agreement, or by any person who receives any remuneration in respect of arrangements for the journey;
- (c) the journey must be made without previous advertisement to the public of facilities for its being made by passengers to be carried at separate fares;
- (d) the journey must not be one on which passengers are carried at separate fares frequently, or as a matter of routine, in the same vehicle or in vehicles (other than vehicles used under a road service licence) belonging to the same owner or belonging partly to one person and partly to another who is a party to a hiring agreement or hire purchase agreement of which any of the vehicles is the subject; and
- (e) the journey must not be made in conjunction with, or in extension of, a service provided under a road service licence, if the vehicle is owned by, or made available under any arrangement (including a hiring agreement or hire purchase agreement) with, the holder of the licence or any person who receives any remuneration in respect of the service provided thereunder or in respect of arrangements for that service."

(2) A motor vehicle adapted to carry less than eight passengers shall not, while it is being used on a journey in relation to which the conditions mentioned in the further proviso inserted as aforesaid by the foregoing subsection are satisfied, be deemed for the purposes of any enactment to be a vehicle carrying or conveying passengers for hire or reward at separate fares.

2.—(1) In subsection (1) of section three of the Road and Rail Traffic Act, 1933 (which specifies in paragraphs (a), (b) and (c) thereof respectively the period for which licences of classes A, B and C respectively may be granted under Part I of that Act), there shall be inserted, at the end of each of the said paragraphs, the words “or such longer period as may be prescribed”.

A.D. 1937.
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Power to
extend
currency
period for
carriers’
licences.
23 & 24
Geo. 5. c. 53.

(2) At the end of the said subsection (1) the following words shall be inserted:—

“Regulations made for the purposes of this subsection may provide that, where the licensing authority is of opinion that such a course is desirable in order to arrange a suitable and convenient programme of work, he may in his discretion grant a licence for a currency period shortened to meet the requirements of that programme.”

3.—(1) This Act may be cited as the Road Traffic Act, 1937, and this Act and the Road Traffic Acts, 1930 to 1936, may be cited together as the Road Traffic Acts, 1930 to 1937.

Short title,
citation and
extent.

(2) This Act shall not extend to Northern Ireland.

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